

Tentative Rulings for June 25, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2302029	VAZQUEZ VS FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES BY FERNANDA VAZQUEZ

Tentative Ruling: The matter of reasonableness of a party's attorney fees is within the discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information such as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Plaintiff's motion relies on the Declaration of Dhara Chandy to establish the attorneys' fees, costs, and expenses along with hourly rates and attorney experience.

Plaintiff's rates ranged from \$195 to \$650 per hour. Managing Partner Tionna Carvalho billed \$570 per hour in 2023, \$595 per hour in 2024, and \$650 per hour in 2025. Senior Counsel George Hill billed \$550 per hour in 2024 and \$585 per hour in 2025. Senior Counsel Tyson Smith billed \$475 per hour in 2023, \$525 per hour in 2024, and both \$525 and \$565 per hour in 2025. Other attorneys and support staff billed at rates ranging from \$195 to \$615 per hour.

First, the hourly rates are not reasonable for Riverside County. Plaintiff makes no showing that she could not obtain local counsel, and therefore, are not entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 (plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel).) The rates are reduced as follows:

Tionna Carvalho (Partner) to \$550; George Hill and Tyson Smith (Senior Counsel) to \$500 each; all other attorney associates (Chandy, Dias, Law, Medina, Pillai, Sanaia, Tirmizi, Virasingh, Weiser): \$350/hour

All other timekeepers (Law clerks and clerks): \$150/hour

Second, Plaintiff used 24 timekeepers, consisting of work on one lemon law case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) The following individuals' times are removed as superfluous: (1) Karla Hernandez for 0.5 hours, (2) Tara Mejia for 0.8 hours, (3) Silvia Moreno for 0.3 hours, and (4) Nino Sanaia for 0.7 hours.

Defendant attacks specific billing entries as follows:

8.2 Hours Pleading-Related Work:

Defendant argues that these fees were unreasonable because the work involved meet and confer, drafting a First Amended Complaint (FAC) that was allegedly identical to the original, and preparing an opposition to a demurrer, relating to the fraud and negligent repair claims only. These are compensable tasks but the hours billed are excessive. The court strikes 4 hours from these tasks (2 hours from Jacob Lister and 2 hours from Daniel Law).

15.2 Hours for MSA Opposition:

Defendant argues that 15.2 hours is excessive for opposing a motion for summary adjudication (MSA) challenging only one fraud claim. These hours include drafting (attorney Pillai), revision (attorney Tirmizi), and hearing attendance (attorney Virasingh). These times are compensable but excessive. The court strikes 2 hours from Pillai, 2 hours from Rabiya Tirmizi, and 1.2 hours from Ann Virasingh.

6.5 Hours for Opposing Discovery Motion:

Defendant argues that the time spent in opposing a motion to compel further interrogatory responses is not justified because the court granted the motion. This time is, however, compensable regardless of the outcome.

4.5 Hours for Second PMK Deposition Preparation:

Defendant asserts that billing 4.5 hours to prepare for and attend a second session of its PMK deposition is unreasonable since "no deposition was set on or shortly after that date." Plaintiff counters that Defendant is the one that offered the second deposition and so Plaintiff served a third amended notice of deposition. 4.5 hours for preparing and serving an amended deposition notice is unreasonable. There is no attendance time. The court strikes 4 hours (attorney Hill) from this time, allowing only 0.5 hours for this task.

5.5 Hours for Fee Motion & \$4,000 in Anticipated Fees:

Defendant argues that 5.5 hours billed for this fee motion using boilerplate templates and the \$4,000 requested for "anticipated" future work are excessive. Defendant's argument has merit. The court strikes 3 hours for the fee motion and allows

only 2 hours for this task. Also, the \$4,000 future fee is unsubstantiated. Plaintiff did not provide a breakdown of estimated hours to support the anticipated work.

Block-Billed Time:

Defendant argues that certain entries are “block-billed.” There is a 3.5-hour entry on 10/31/24 (Stoliker) that bundles an ex parte application, a stipulation, emails, and a deposition notice. “Block billing presents a particular problem for a court seeking to allocate between reimbursable and unreimbursable fees, and trial courts are granted discretion ‘to penalize [block billing] when the practice prevents them from discerning which tasks are compensable and which are not.’” (*In re Marriage of Nassimi* (2016) 3 Cal.App.5th 667, 695.) The trial court may exercise its discretion by assigning a reasonable percentage or casting them aside. (*Id.*) Block billing undermines the credibility of the attorney. (*Id.*) Here, the entry is not itemized, the court reduces 1 hour (attorney Stoliker) from this entry.

Clerical Tasks:

Defendant argues that 4.1 hours of the requested fees are clerical in nature and “billed by some of the firm’s highest-rate attorneys.” Defendant, however, failed to explain what these individual billing entries are. No adjustment as to the clerical tasks claim.

Accordingly, the adjusted lodestar is illustrated below

Name	Hours (original)	Rate (original)	Total (original)	Hours (amended)	Rate (amended)	Total (amended)
Carvalho, Tionna (2023)	1.0	\$570	\$570	1.0	\$550	\$550
Carvalho (2024)	4.0	\$595	\$2,380	4.0	\$550	\$2,200
Carvalho, Tionna (2025)	4.7	\$650	\$3,055	4.7	\$550	\$2,585
Chandy, Dhara (2026)	1.0	\$435	\$435	1.0	\$350	\$350
Dias, Aylana (2024)	5.2	\$325	\$1,690	5.2	\$350	\$1,820
Fernandez, Camilo (2024)	1.6	\$325	\$520	1.6	\$150	\$240
Fernandez, Camilo (2025)	1.2	\$345	\$414	1.2	\$150	\$180
Hernandez, Karla (2026)	0.5	\$195	\$97.50	0	\$150	\$0
Hill, George (2024)	0.8	\$550	\$440	0.8	\$500	\$400
Hill, George (2025)	9.2	\$585	\$5,382	5.2	\$500	\$2,600
Khanna, Aarushi (2026)	4.5	\$360	\$1,620	1.5	\$150	\$225

Law, Daniel	4.2	\$475	\$1,995	2.2	\$350	\$770
Lister, Jacob	4.5	\$495	\$2,227.5	2.5	\$350	\$875
Lunn, Kathryn	2.4	\$345	\$828	2.4	\$150	\$360
McCallister, Ian	1.6	\$595	\$952	1.6	\$350	\$560
Mcgurk, Lina	2.5	\$600	\$1,500	2.5	\$350	\$875
Medina, Jonathan	8.5	\$525	\$4,462.5	8.5	\$350	\$2,975
Mejia, Tara (2023)	0.6	\$395	\$237	0	\$350	\$0
Mejia, Tara (2025)	0.2	\$425	\$85	0	\$350	\$0
Moreno, Silvia (2026)	0.3	\$195	\$58.50	0	\$150	\$0
Pillai, Vineeth (2025)	10.8	\$375	\$4,050	8.8	\$350	\$3,080
Sanaia, Nino (2024)	22.5	\$435	\$9,787.5	22.5	\$350	\$7,875
Sanaia, Nino (2025)	0.7	\$475	\$332.50	0	\$350	\$0
Smith, Tyson (2023)	2.9	\$475	\$1,377.5	2.9	\$500	\$1,450
Smith, Tyson (2024)	13.9	\$525	\$7,297.5	13.9	\$500	\$6,950
Smith, Tyson (2025)	1	\$565	\$565	1	\$500	\$500
Stoliker, Rosy (2024)	4.8	\$435	\$2,088	3.8	\$350	\$1,330
Theophil, Hannah	2.7	\$395	\$1,066.5	2.7	\$150	\$405
Tirmizi, Rabiya (2024)	3.3	\$395	\$1,303.5	3.3	\$350	\$1,155
Tirmizi, Rabiya (2025)	10.9	\$435	\$4,741.5	8.9	\$350	\$3,115
Vaziri, Sanam (2023)	1.7	\$610	\$1,037	1.7	\$350	\$595
Virasingh, Ann	1.9	\$615	\$1,168.5	0.7	\$350	\$245
Weiser, Anna (2023-24)	5.8	\$525/\$550	\$3,165	5.8	\$350	\$2,030
TOTALS	141.4		\$66,929	121.9		\$46,295

Costs and Expenses:

Plaintiff requests \$15,588.03 in costs. Defendant did not object to any particular cost entries but argues that Plaintiff did not file a memorandum of costs. Costs are recoverable if they were reasonably incurred in prosecuting the action. (Civ. Code, §

1794(d).) The parties' settlement agreement provides that attorneys' fees and costs shall be determined by motion practice. (Chandy Decl., Ex. 6, ¶ 2.)

Multiplier:

This case involved multiple motions including a demurrer, motions to compel and motion for summary adjudication filed by Defendant. The court shall award a multiplier of 1.1 in recognition of additional involvement required for this case.

Plaintiff's Request for Judicial Notice DENIED.

Plaintiff's Evidentiary Objections the court DECLINES to RULE.

Motion for Attorneys' Fees GRANTED in PART.

Award of Fees \$46,295 + \$4,629.50 (1.1 multiplier) + \$15,588.03 costs for total of \$66,512.53.

OSC re Dismissal continued to September 14, 2026

2.

CASE #	CASE NAME	HEARING NAME
CVPS2303732	WINSTEAD VS 7-ELEVEN, INC., A TEXAS CORPORATION	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF ALYSSA WINSTEAD, AN INDIVIDUAL BY YARANA, INC.

Tentative Ruling: Either party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (CCP §437c(a).) Summary judgment is granted when a moving party establishes the right to entry of judgment on a particular cause of action as a matter of law. (CCP 437c(c).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (CCP §437c(c).) "In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgement shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (CCP §437c(c).) The court must view such evidence and inferences in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 844.)

The claims asserted against Yarana are negligence/premises and negligent hiring or supervision. A negligence claim requires a duty, breach of duty, causation, and damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Premises liability and negligence claims have the same elements. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) A premises claim is based on the possession of the premises and the property owner/manager's right to control and manage the property. (*Id.*) "But the duty arising from possession and control of property is adherence to the same standard of

care that applies in negligence cases.” (*Id.*) Generally, there is no duty to protect others from the conduct of third parties. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.)

On the negligence/premise liability claim, liability is based on Yarana’s alleged failure to prevent Davis’ physical assault on Plaintiff. A business owner only owes a duty to patrons to take reasonable steps to secure against foreseeable criminal acts of third parties that are likely to occur in the absence of the precautionary measures. (*Id.* at 235-237.) “[T]he requisite degree of foreseeability rarely, if ever can be proven in the absence of prior similar incidents of violent crime on the landowner’s premises. To hold otherwise would be to impose an unfair burden on landlords and, in effect, would force landlords to become insurers of public safety, contrary to well-established policy in this state.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 678-679.) Absent prior similar incidents or other indicators that the risk of violent criminal assaults in the location is reasonably foreseeable, a business owner is not required to secure their property against such a crime. (*Delgado, supra*, 36 Cal.4th at 239-240.)

Yarana has provided evidence that Yarana has operated the business at the location the assault occurred from December 2019 to 2024. (Declaration of Umar Khan, ¶ 2.) Prior to the incident, Yarana had not received and had no record of receiving any report or complaint about Davis. (*Id.* at ¶ 4.) Yarana also had no prior violent incidents at the location before the incident. (*Id.* at ¶ 5.) Yarana’s President also provides that he had no knowledge of any violent incidents at the location before Yarana’s time as franchisee. (*Id.* at ¶ 5.) This evidence meets Yarana’s burden to establish that it did not breach its duty of care due to lack of prior violent incidents at the location and lack of any notice of Davis’ (a third party) violent behavior.

The last applicable cause of action is for negligent hiring or supervision. An employer can be held liable for negligent hiring of an employee, if it was aware or should have been aware that hiring the employee created a particular risk or hazard and that particular risk or harm materializes. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.) “To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.) This cause of action alleges that Yarana’s employee was unfit and incompetent and this incompetence and unfitness created a risk to Plaintiff. (Complaint, ¶ 41.)

Yarana has provided evidence that it had no knowledge or information that suggests that the employee in question was unfit, incompetent, or a danger to customers. (Declaration of Umar Kahn, ¶ 8.) There are no records of any complaints from customers, venters, or coworkers regarding the employee’s performance, behavior, or fitness for duty. (*Id.* at ¶ 9.) This is sufficient to meet Yarana’s burden that it lacked knowledge of the unfitness of its employee.

No opposition was submitted on behalf of Plaintiff.

Defendant Yarana’s Motion for Summary Judgment GRANTED.

Yarana to submit a proposed order and judgment within 10 days.

Trial Setting Conference continued to July 22, 2026.

CASE #	CASE NAME	HEARING NAME
CVPS2401026	PADJUS HILLS VS COSTCO WHOLESALE CORPORATION	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF ELNA PADJUS HILLS

Tentative Ruling: From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Erikkson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

Plaintiff's Complaint contains two causes of action that are premised upon the same factual allegations: negligence and premises liability.

The elements of a cause of action for negligence are: (1) defendant's legal duty of care toward plaintiff, (2) defendant's breach of duty (the negligent act or omission), (3) injury to plaintiff as a result of the breach (proximate or legal cause), and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Premises liability is a form of negligence wherein the owner of the premises is under a duty to exercise reasonable care in the management of such premises to avoid exposing persons to an unreasonable risk of harm. (Civ. Code § 1714, subd. (a); *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) To establish premises liability, a plaintiff must prove (a) the defendant was the owner, occupier, or lessor of the premises, (b) the defendant was negligent in the use, maintenance, or

management of the premises, and (c) that the negligence was the cause of injury, damage, loss, or harm to the plaintiff. (*Brooks, supra*, 215 Cal.App.3d at 1619.)

“[A]lthough a store owner is not an insurer of the safety of its patrons, the owner does owe them a duty to exercise reasonable care in keeping the premises reasonably safe. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.) This includes a duty to make “reasonable inspections of the portions of the premises open to customers” and to “keep the floors safe for patrons’ use.” (*Id.*)

To prove an unsafe condition of property, plaintiff must prove: (1) a condition on the premises created an unreasonable risk of harm; (2) defendant knew, or in the exercise of reasonable care, should have known about it; and (3) defendant failed to repair the condition, protect against harm from the condition, or give adequate warning of the condition. (See *Ortega, supra*, 26 Cal.4th at 1206, emphasis added.)

Dangerous Condition:

Defendants argue the polished concrete walkway surface where Plaintiff fell was not a dangerous condition.

The following are undisputed: Plaintiff was shopping at the Palm Desert Costco Warehouse on March 4, 2022 and did not notice any dangerous condition during the approximately 20 minutes she shopped before her fall. (UF #1-3.) Plaintiff, who was wearing sandals and one contact in her left eye, unloaded her shopping cart and was in the process of paying when her right leg slid out to the side causing her to fall to the ground. (UF #4-9, 14-15.) Plaintiff was not walking at the time of the incident. (UF #10.) Plaintiff’s deposition testimony and the four photographs of Plaintiff taken following the fall show no visible contaminant or dangerous condition on the ground. (UF #12, 19.)

Costco retained Rutledge to perform a coefficient of friction (“COF”) testing of the area where Plaintiff fell, which consists of polished concrete, using a Mark IIIB tribometer. (UF #17-18, 20-24.) The measurements during the dry/uncontaminated testing were between 0.53 and 0.55 within an average value of 0.54. (UF #25.)

Rutledge found that the area where Plaintiff fell is considered slip resistant because any measured COF value greater than 0.40 is considered slip resistant. (UF #27.) Thus, the area where Plaintiff fell met and exceeded the industry standard. (UF #29.) Plaintiff disputes these UFs in the form of an objection as improper expert conclusion Plaintiff’s objections to various portions of the Rutledge’s declaration based on lack of foundation, lack of authentication, speculation, relevance, improper opinion on legal standard, unduly prejudicial, and misleading as meritless. Sufficient foundation has been laid for Rutledge’s qualifications, basis of opinion, and testimony, and any objections Plaintiff asserts goes to weight, not admissibility. (Exhibit F of Defendants Notice of Lodgment.)

In opposition, Plaintiff relies on her deposition testimony wherein she testified she had no prior leg pain, instability or prior episodes of her leg giving way, which supports the argument that it was loss of traction rather than a medical event that caused Plaintiff’s fall. However, the fact that Plaintiff does not have a prior medical condition is insufficient to present a triable issue of material fact that a dangerous condition affirmatively exists.

Actual or Constructive Knowledge:

To prevail on a claim for negligence or premises liability, the “injured plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it but failed to take reasonable steps to do so.” (*Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 431.) “Because the owner is not the insurer of the visitor’s personal safety [citation], the owner’s actual or constructive knowledge of the dangerous condition is a key to establishing its liability.” (*Ortega, supra*, 26 Cal.4th at 1206; see *Getchell v. Rogers Jewelry* (2012) 203 Cal.App.4th 381, 385 [“property owner must have actual or constructive knowledge of a dangerous condition before liability will be imposed”].)

Constructive knowledge exists when the dangerous condition was present long enough for a reasonably prudent person to have discovered it. (*Ortega, supra*, 26 Cal.4th at 1206-1207.) Whether the presence of the condition was long enough “is a question of fact for the jury, and the cases do not impose exact time limitations. Each accident must be viewed in light of its own unique circumstances. [Citation.] The owner must inspect the premises or take other proper action to ascertain their condition, and if, by the exercise of reasonable care, the owner would have discovered the condition, he is liable for failing to correct it.” (*Id.* at 1207.)

The following is undisputed: Prior to opening, Costco employees prepare the registers and surrounding area by sweeping the floor, putting away any boxes, and setting up mats behind the register. (UF #40.) Numerous Costco members are shown on surveillance video standing and/or walking on the same walkway surface without any observable slip and falls occurring, including individuals walking through the incident location immediately prior to Plaintiff’s fall. (UF #30.) Costco employees use floor scrubbers to clean the floor using only water and no other product to create a shiny appearance. (UF #36-38.) Moreover, floor scrubbers are not used in the aisles in front of the register. (UF #39.)

Plaintiff disputes UF #39 by asserting the checkout/front-end is a high traffic zone and “may be subject to transient spills and track-in moisture between floor walk interval.” However, Plaintiff presents no evidence that the foregoing was in fact present. Thus, UF #39 is undisputed.

Costco conducted a warehouse floor walk on the day of the incident and did not identify any unsafe conditions or slip and trip hazards. (UF #41.) Plaintiff disputes this UF and argues that the Daily Floor Walk/Safety Inspection Sheet on the day of Plaintiff’s fall does not establish a specific time that Zone 1, the front end/checkout area, was inspected. In reviewing the Daily Floor Walk/Safety Inspection Sheet, it shows that the Front End Area where Plaintiff’s fell is included in the inspection. (Defendants’ Notice of Lodged Documents, Exh. I “Floor Inspection Sheet”) The 9am inspection began at 9:58 and ended at 10:56am. (*Id.*) The Floor Inspection Sheet instructs at the top, “Physically walk down each aisle inspecting for unsafe conditions and potential hazards” and “Place a check mark in each box to indicate that no hazards exist.”(*Id.*) There is a check mark for the 9am inspection for the area where Plaintiff fell.

It is further undisputed that a number of Costco employees working on the floor are provided radios. (UF #42-43.) No radio calls were made prior to Plaintiff’s fall regarding a dangerous condition on the floor where fall occurred. (UF #44.) Plaintiff

disputes UF #44 based on an objection to Rocha's declaration to UF #44. However, Rocha is the current Assistant General Manager for Costco. (Rocha Dec. ¶3.)

The only evidence Plaintiff presents is Costco's admission in discovery responses that "there have been two other claims of incidents occurring between registers within the last 5 years." (Turlington Decl., Exh. 2, Costco's Verified Responses to Plaintiff's Special Interrogatories, No. 11.) However, this evidence does not rebut Costco's evidence that an inspection prior to Plaintiff's fall occurred and no dangerous condition was detected. Plaintiff fails to present any other evidence.

Plaintiff's Evidentiary Objections to Claudia Rocha Declaration numbers 1-10
OVERRULED.

Plaintiff's Evidentiary Objections to Brad Rutledge Declaration numbers 11-15
OVERRULED.

Defendants' Request for Judicial Notice of Exhibit 1, Plaintiff's Complaint, GRANTED.

Defendants' Motion for Summary Judgment GRANTED.

Defendant to submit a revised Proposed Order and a Proposed Judgment.

Jury Trial confirmed for August 7, 2026 pending submission of the Proposed Judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL SPECIAL INTERROGATORIES FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT, SET ONE, AND FOR SANCTIONS BY CARISSA CARRERA

Tentative Ruling: No tentative ruling. Motion to Compel is continued.

The hearing on the Motion to Compel is continued to July 30, 2026. The parties are ordered to **meet and confer via in person, teleconference or phone** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the motion. As part of the meet and confer process, Plaintiff shall identify the specific items that it believes are subject to the motion and identify with legal support the basis of the deficiencies. Defendant shall provide legal support for their position that the responses are legally sufficient or, in the alternative, how the responses may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Plaintiff vacate the hearing on the motion to compel;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Defendant will file amended responses before the date set forth above; or

(3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve.

The court will not accept further briefing.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL REQUEST FOR ADMISSIONS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT TO PLAINTIFF'S REQUEST FOR ADMISSION, SET ONE, NO. 47 AND FOR SANCTIONS IN THE AMOUNT OF \$897.50 BY CARISSA CARRERA

Tentative Ruling: No tentative ruling. Motion to Compel is continued for parties to properly meet and confer as directed above.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT, SET ONE, AND FOR SANCTIONS BY CARISSA CARRERA

Tentative Ruling: No tentative ruling. Motion to Compel is continued for parties to properly meet and confer as directed above.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL ENRIQUE TIRA TO PRODUCE DOCUMENTS, AND FOR SANCTIONS IN THE AMOUNT OF \$3,429.75

Tentative Ruling: Discovery may be obtained from a nonparty by oral deposition, written deposition, or a deposition for production of business records. (CCP §2020.010.) “[T]he process by which a nonparty is required to provide discovery is a deposition subpoena.”

(CCP §2020.010(b).) Personal service of a deposition subpoena obligates any California resident to appear, testify and produce the requested documents, and to appear in any proceedings to enforce the discovery. (CCP §2020.220(c).)

Where a deponent fails to answer a deposition question, the examining party may move for an order compelling an answer. (CCP § 2025.480(a).) The motion must be accompanied by a declaration showing a good faith attempt to resolve the dispute informally. (CCP § 2025.480(b).) The deponent has the burden to justify refusal to respond. (*Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1045.)

On January 16, 2026, the Subpoena for Personal Appearance and Production of Documents and Things (Subpoena) was issued for Tira. (Decl. of Harings, Ex. 1.) The Subpoena included four RFPs. RFP No. 4 requests, “All of your correspondence, documents, letters, notes, videos, audio recordings, emails, or text messages which include any reference to Carissa Carrera, her son and/or your retention or actions in investigating Ms. Carrera and/or her son, from January 1, 2023 to the present.” (Decl. of Harings, Ex. 1.) Plaintiff argues that, during the deposition, it became clear that all responsive documents were not provided. Tira does not dispute that he failed to produce all documents in advance of the deposition. Nor does he dispute the relevance of the documents at issue.

Tira claims that he has since produced additional documents to the District’s counsel with the request that they be forwarded to Plaintiff’s counsel. However, the documents were not produced in native form. Moreover, Tira appears to concede that he has not completed a diligent search for the documents.

Regarding sanctions, the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion under CCP § 2025.480 unless the party subject to the sanction acted with substantial justification or other circumstances make the imposition unjust. (CCP § 2025.480(j).) While it is apparent that Tira did not produce all responsive documents prior to the deposition or meet and confer prior to the filing of the Motion, the circumstances make the imposition of sanctions unjust. On May 29, during the post-Motion meet and confer, Tira informed counsel that he had been out of town and was suffering from medical issues, which required him to be fitted for a heart monitor. (Decl. of Tira, ¶¶8.) It appears that Tira has been making some effort to locate and provide responsive documents. (Id at ¶¶9.) Tira has also agreed to continue to use best efforts to search for documents. (Id at ¶¶ 11.)

Motion to Compel 3rd Party Enrique Tira to Produce Documents GRANTED.

Enrique Tira is ordered to produce all responsive documents and verified responses, to Plaintiff’s Request for Documents #4, without objection. Documents submitted by Enrique Tira shall be in their native form.

Enrique Tira is ordered to sit for a continued deposition, if directed by Plaintiff. The deposition will occur on an agreed upon date, no later than 60 days after production of the additional documents and responses.

Request for Sanctions DENIED.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF WITNESS KARINA VEGA, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT CVUSD, AND/OR ATTORNEY RANDALL WINE; AND TO PREVENT CVUSD'S ATTORNEY FROM REPRESENTING MS. VEGA DUE TO A CONFLICT OF INTEREST

Tentative Ruling: Any party may obtain discovery by taking the deposition of any person, including a party to the action. (CCP § 2025.010.) Pursuant to Cal. Code Civ. Pro. §2025.480(a), if a deponent fails to answer any questions, the party seeking discovery may move the court an order compelling the answer. If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition. (CCP §2025.480(i).) The deponent has the burden of justifying the refusal to answer deposition questions. (*Warford v. Medeiros* (1984) 160 Cal. App. 3d 1035, 1045.)

Here, there are essentially three questions at issue, although some questions were asked multiple times: (1) whether Vega was ever disciplined for referring Plaintiff and her son to the Latino Commission; (2) whether Vega was ever disciplined for referring any other District employee to the Latino Commission; and (3) whether Vega has any plans to file a grievance with the union related to Plaintiff's case. In response to each of these questions, the District objected on grounds of privacy and instructed Vega not to answer.

Generally, it is improper for counsel to instruct a witness not to answer a deposition question, although such an instruction is proper based on an objection on grounds of privilege, trade secrets or privacy. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013.) Since the District objected on grounds that the information invades Vega's right to privacy, the instruction not to answer was proper.

The right to privacy is protected by the California Constitution. (Cal. Const. Art. 1, §1.) However, unlike a privilege, the privacy protection is qualified and disclosure may occur to serve a "compelling state interest." (*Britt v. Superior Court* (1978) 20 Cal. 3d 844, 855-856.) Thus, when a privacy right is implicated, the court must carefully balance the right of privacy against the need for discovery. (*Ibid.*) Disclosure of personal information can be compelled only if the information is directly relevant and essential to a fair resolution of the action. (*Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1431-1432.) Even where the balance weighs in favor of disclosure of private information, the scope of the disclosure must be narrowly circumscribed and is permitted only the extent necessary for a fair resolution of the lawsuit. (*Britt, supra*, 20 Cal. 3d. at 859.) "The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is

serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. (*Williams v. Superior Court* (2017) 3 Cal. 5th 531, 552.)

Employment records are generally covered by the constitutional right of privacy. (*Board of Trustees v. Superior Court* (1981) 119 Cal. App. 3d 516, 528.) Generally, the public interest in preserving confidential personnel information outweighs a private litigant's interest in obtaining that information. (*Life Technologies Corp. v. Superior Court* (2011) 197 Cal. App.4th 640, 652.) "Even when the balance does weigh in favor of disclosure, the scope of the disclosure must be narrowly circumscribed." (Id.)

Plaintiff argues that the testimony at issue is necessary to show the District's motives for the criminal fraud investigation. The District asserts that the testimony is irrelevant since the fraud allegations were not based on the referral to the Latino Commission, but rather on Plaintiff's use of the District's contract with the Latino Commission to pay for the services for her son who was not a District student. Plaintiff asserts that evidence of disciplinary action against Ms. Vega would show that the District intended to make Vega the fall guy for the retaliatory investigation. While this is arguably sufficient to establish the need for discovery of disciplinary action in regards to Vega's referral of Plaintiff's son, it does not outweigh the privacy interests of Vega and other parties regarding disciplinary actions for other referrals or whether Vega considered filing a complaint or grievance against the District for any such discipline.

Plaintiff argues that the District may not assert Vega's privacy right on her behalf, and therefore, Vega was required to file her own opposition to the Motion to Compel. Plaintiff relies on *Hendrickson v. California Newspapers, Inc.* (1975) 48 Cal. App. 3d 59, which states that "[i]f it is well settled that the right of privacy is purely a personal one; it cannot be asserted by anyone other than the person whose privacy has been invaded, that is, plaintiff must plead and prove that *his* privacy has been invaded." (Id at 62; emphasis in original.) However, *Hendrickson* involved an action for invasion of privacy rather than a discovery dispute. Courts frequently allow a party to an action to assert a privacy objection to protect the rights of third parties. For example, in *Williams, supra*, 3 Cal. 5th 531, an employer asserted that a PAGA plaintiff's special interrogatories seeking contact information for all aggrieved employees was an invasion of the privacy of the employees. (Id at 542.) Likewise, in *Harding Lawson Associates v. Superior Court* (1992) 10 Cal. App. 4th 7 (disapproved on other grounds by *Williams, supra*) the court allowed the employer to assert privacy rights on behalf of third-party employees and determined that the need for discovery did not outweigh the employees' right to privacy in their personnel files. (Id at 10.)

Pursuant to CCP § 2025.480, the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel a deposition answer unless the party subject to the sanction acted with substantial justification or other circumstances make the imposition unjust. Here, neither party was entirely unsuccessful. Because each party was meritorious as to some of the questions at issue, both briefs were substantially justified.

Disqualification of Attorney Randall Winet:

A trial court may order disqualification of an attorney pursuant to CCP § 128(a)(5).) “Ultimately, disqualification motions involve a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility.” (*Neal v. Health Net, Inc.* (2002) 100 Cal. App. 4th 831, 840.) Disqualification is proper only when it is necessary to prevent a substantial and continuing effect on future judicial proceedings. (*Gregori v. Bank of America* (1989) 207 Cal. App. 3d 291, 309.) Standing is implicit in a disqualification motion. (*Jarvis v. Jarvis* (2019) 33 Cal.App.5th 113, 131.) A party moving to disqualify counsel must show a legally cognizable interest that is or would be harmed by the attorney’s conflict of interest. This means that, except in limited circumstances, a party seeking disqualification must have or have had an attorney-client relationship with the “target” attorney, as to hold otherwise would permit exploitation of the disqualification motion as a litigation tactic. (Vapnek, et al., Cal. Practice Guide: Professional Responsibility & Liability (The Rutter Group 2024), ¶ 4:322.10, citing *Great Lakes Const., Inc. v. Burman* (2010) 186 Cal. App.4th 1347, 1356-1359; *Marriage of Murchison* (2016) 245 Cal.App.4th 847, 851.) Exceptions to the attorney-client relationship include the existence of a confidential relationship with a nonclient; a close relationship between the nonclient and client, such as close familial relationships; or a nonclient with a personal stake in the motion. (Cal. Prac. Guide: Prof. Resp. & Liab., *supra*, ¶ 4.322.11.) In this case, Plaintiff does not have standing to bring the instant motion because she did not have a confidential or close relationship with Attorney Winet, and does not have a personal stake in the motion. Moreover, the alleged conflict of interest appears to be entirely speculative. Ms. Vega was deposed as an employee of the District and may be represented by the District’s counsel for the purpose of the deposition.

Plaintiff’s Evidentiary Objections 1-5 SUSTAINED.

Motion to Compel Further Deposition Testimony of Witness Karina Vega GRANTED in PART.

Karina Vega shall appear for deposition and respond, without objection, to questions regarding whether CVUSD disciplined, reprimanded or admonished Ms. Vega, regarding her actions in relation to referring Ms. Carrera and Ms. Carrera’s minor son to the Latino Commission.

Request for Sanctions DENIED.

Motion to Prevent CVUSD’s Attorney Randall Winet from Representing Ms. Vega DENIED.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may

make this determination pursuant to a motion for protective order by a party or other affected person. (CCP § 2017.020(a).) “[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought.” (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal. App. 4th 261, 318.) The Individual Defendants move for a protective order limiting the dissemination and use of written discovery responses and deposition testimony, including videotaped deposition testimony, to purposes of this litigation only, and prohibiting the use of such materials for political purposes, including dissemination on social media, in the press, or through other public platforms.

Individual Defendants argue that the Court may, consistently with the First Amendment, issue a protective order restricting the dissemination of information obtained through discovery. (*In re Marriage of Candiotti* (1995) 34 Cal. App. 4th 718, 722.) “[W]hen a protective order is properly issued on a showing of good cause and limits only the dissemination of information obtained through discovery and not other sources, it does not offend the First Amendment.” (Id at 723; *Seattle Times Co. v. Rhinehart* (1984) 467 U.S. 20, 37.) The authority to issue such protective orders is necessary to prevent abuse, where privacy interests are implicated and reputational damage is possible. (*Coalition Against Police Abuse v. Superior Court* (1985) 170 Cal. App. 3d 888, 901.)

While Individual Defendants are correct that protective orders against public dissemination of discovery materials are not unconstitutional, it should be noted that the cases cited by Defendants, including *Candiotti, supra*, and *Coalition Against Police Abuse, supra*, involved information that was disclosed subject to protective orders after a finding of good cause. For example, in *Coalition Against Police Abuse*, the Court presumed that the trial court’s orders were supported by substantial evidence following a careful balancing of the competing interest of the parties. (Id at 896.) These cases do not state that information obtained through discovery may never be used for any purpose other than litigation. The California Discovery Act imposes no confidentiality requirements with respect to information obtained through discovery except upon motion for good cause shown. (*Westinghouse Electric Corp. v. Newman & Holtzinger* (1995) 39 Cal. App. 4th 1194, 1208.) “The “good cause” standard enables the trial court to distinguish between proper use of discovery and misuse of discovery and to treat each in the appropriate manner.” (*Gt, Inc. v. Superior Court* (1984) 151 Cal. App. 3d 748, 755.)

As the moving party, Individual Defendants have the burden of establishing good cause. (*Nativi, supra*, 223 Cal. App. 4th at 318.) They have failed to do so. Defendants argue only that Plaintiff may use information obtained in discovery to campaign against them in the upcoming school board election or make public comments. However, there is no evidence that the information sought is private, confidential or otherwise privileged.

Individual Defendants are concerned that an unrestricted, videotaped deposition could be edited or distorted for political impact. The assertion that Plaintiff would disseminate an edited video in a way that invites distortion is speculative, and does not outweigh the interests of Plaintiff. Defendants have not established good cause for a blanket protective order restricting all discovery materials.

Motion for Protective Order by Defendants Jesus Gonzalez, Joey Acuna Jr., Frances Esparza and Beatriz Gonzales is DENIED.

Request for Sanctions GRANTED.

Defense Counsel to pay \$1860 (\$600/hr x 3 hours + filing fees) within 30 days.

9.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL DEFENDANT CVUSD'S FURTHER RESPONSES TO PLAINTIFF'S FORM INTERROGATORY-SET ONE, NUMBER 217.1 AS IT PERTAINS TO REQUEST FOR ADMISSION, SET ONE, NO. 47 AND FOR SANCTIONS IN THE AMOUNT OF \$897.50

Tentative Ruling: No tentative ruling. Motion to Compel is continued for parties to properly meet and confer as directed above.